

Amendment No. 2 to HB2136

Farmer
Signature of Sponsor

AMEND Senate Bill No. 2556

House Bill No. 2136*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-17-403(d), is amended by designating the existing language as subdivision (d)(1) and adding the following as a new subdivision:

(2) If no objection is filed under subdivision (d)(1) for a substance that is approved by the United States food and drug administration and designated or scheduled under federal law by a final order published in the Federal Register, then the substance is considered to be in the same schedule as such substance is designated or scheduled under the federal schedule of controlled substances after the expiration of thirty (30) days from the date of publication of the final order. Any such designation or scheduling pursuant to this subdivision (d)(2) is effective immediately after the expiration of thirty (30) days from the date of publication of the final order and is not contingent on the annual revision and republishing of schedules pursuant to subsection (g).

SECTION 2. Tennessee Code Annotated, Title 63, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) Notwithstanding a law to the contrary, a healthcare prescriber licensed under this title who is authorized to prescribe controlled substances may prescribe a drug product that has been scheduled pursuant to § 39-17-403(d)(2) immediately upon the effective date of such scheduling if:

(1) The drug product is approved by the United States food and drug administration;

(2) The drug product is in a schedule other than Schedule I by operation of § 39-17-403(d);

(3) Prescribing the drug product is within the healthcare prescriber's lawful scope of practice; and

(4) The drug product is not otherwise prohibited by state or federal law.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.